

25STCV10080 25STCV10080

County: los-angeles

Division: Civil Law and Motion

Department: 512

Hearing date: 2026-08-25

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Case Number: 25STCV10080 Hearing Date: August 25, 2026 Dept: 512

HEARING DATE: Tues., August 25, 2026 JUDGE

/DEPT: Mkrtyan/512

CASE NAME: SMS

Generators, LLC v. Perry, et al. COMP. FILED: 04-03-25

CASE NUMBER: 25STCV10080

NOTICE:

OK

PROCEEDINGS: MOTION TO BE RELIEVED AS COUNSEL

MOVING PARTY: Counsel

Brian D. Seibel of Seibel & Finta, representing Defendants Nickolas

Perry and Founderz, LLC

RESP. PARTY: None

MOTION TO BE RELIEVED AS COUNSEL

(CCP § 284, CRC, rule 3.162)

TENTATIVE RULING:

Counsel Brian D. Seibel of

Seibel & Finta's unopposed Motion to be Relieved as Counsel for Defendants Nickolas Perry and

Founderz, LLC is GRANTED. However, the corrected MC-053 form entitled "Order

Granting Attorney's Motion to Be Relieved as Counsel-Civil" must be resubmitted with the Court within the next 5 days of this ruling providing all the accurate dates and future dates.

The Court's Ruling and Attorney's relief as Counsel of record for client is not effective until Proof of Service of the Order signed by the Court upon the client is served and filed in this action. Until then, counsel continues to be counsel of record. (Cal. Rules of Court 3.1362(e).)

Defense

Counsel is ordered to give notice.

SERVICE:

☒ Proof of Service Timely Filed (CRC, rule 3.1300) OK

☒ Correct

Address (CCP §§ 1013, 1013a) OK

☒ 16/21 Court

Days Lapsed (CCP §§ 12c, 1005(b)) OK

OPPOSITION: None

filed as of August 19, 2026 ☐ Late ☒

None

REPLY: None

filed as of August 19, 2026 ☐

Late ☒ None

ANALYSIS:

I.

Background

On April 3, 2025, Plaintiff SMS

Generators, LLC ("Plaintiff") filed a Complaint for Breach of Contract against Defendants Nickolas Perry and Founderz, LLC ("Defendants") and Does 1-10.

On October 22, 2025, Plaintiff filed a First Amended Complaint against Defendants and Does 1-10, alleging causes of action for Breach of Contract, Account Stated, Breach of Implied-in-Law Contract, and Conversion.

On November 10, 2025, Defendants filed an Answer.

On June 17, 2026, Defendants' counsel Brian D. Seibel of Seibel & Finta ("Counsel") filed and served the instant Motion to be Relieved as Counsel for Defendants (the "Motion").

On July 14, 2026, the Court continued the hearing on the Motion to allow Counsel to properly serve the Motion and notice of hearing on Defendants, correct defects in the MC-051 Form, and file an MC-053 Form. (7/14/26 Order.)

On July 31, 2026, Defendants filed an Amended MC-051 Form, Notice of Continued Hearing, an MC-053 Form, and Proof of Service.

No Opposition has been filed.

II.
Legal
Standard

Code of Civil Procedure section 284 states that "the attorney in an action...may be changed at any time before or after judgment or final determination, as follows: (1) Upon the consent of both client and attorney...; (2) Upon the order of the court, upon the application of either client or attorney, after notice from one to the other." (Code Civ. Proc., § 284; Cal. Rules of Court, rule 3.1362.) "The determination whether to grant or deny a motion to withdraw as counsel lies within the sound discretion of the trial court." (Manfredi & Levine v. Superior Court (1998) 66 Cal.App.4th 1128, 1133); see Lempert v. Superior Court (2003) 112

Cal.App.4th 1161, 1173.)

An application

to be relieved as counsel must be made on Judicial Counsel Forms MC-051 (Notice of Motion and Motion), MC-052 (Declaration), and MC-053 (Proposed Order). (Cal. Rules of Court, rule 3.1362, subds. (a), (c), (e).)

In addition,

California Rules of Court, rule 3.1362 subsection (d) requires that the notice of motion and motion, declaration, and proposed order be served on the client and all other parties who have appeared in the case by personal service, electronic service, or mail.

III.

Discussion

On June 17,

2026, Counsel moved the Court to

be relieved as attorney of record for Defendants. (MC-051.) On June 17, 2026, Counsel filed MC-051 and MC-052 Forms and sought to be relieved on the following grounds:

Despite repeated efforts to

communicate with both clients and repeated assurances from them that the pending discovery would be responded to, both clients have failed to provide counsel with any information that would be responsive to the current outstanding discovery. In the absence of such information, the pending discovery cannot be properly responded to and the lack of responsive communication makes my continued representation impossible. Further, clients have a balance due on invoices for services rendered which have been unpaid for more than 90 days. Should further details be required to support this motion, the undersigned is prepared to submit a supplemental declaration under seal in order to protect the confidentiality of attorney client communications.

(MC-052, ¶ 2.)

On July 31, 2026, Counsel filed an

Amended MC-051 Form and an MC-053 Form as well as proof of service demonstrating the Amended MC-051 Form, MC-052 Form, MC-053 Form, and Notice of Continuance of Hearing were served by mail and electronic service on Defendants

and Plaintiff's counsel.

The Court is satisfied with Counsel's reasons for seeking to be relieved. (Cal. Rules of Professional Conduct, rule 1.16.) The Court also finds the Motion and supplemental documents now satisfactorily comply with California Rules of Court, rule 3.1362.

However, the MC-053 Form needs to be resubmitted with accurate dates.

Accordingly, Counsel's Motion is GRANTED. However, the corrected MC-053 form entitled "Order Granting Attorney's Motion to Be Relieved as Counsel-Civil" must be resubmitted with the Court within the next 5 days of this ruling providing all the accurate dates and future dates.

The Court's Ruling and Attorney's relief as Counsel of record for client is not effective until Proof of Service of the Order signed by the Court upon the client is served and filed in this action. Until then, counsel continues to be counsel of record. (Cal. Rules of Court 3.1362(e).)

IV.

Conclusion & Order

Accordingly, Counsel Brian D. Seibel of Seibel & Finta's unopposed Motion to be Relieved as Counsel for Defendants Nickolas Perry and Founderz, LLC is GRANTED. However, the corrected MC-053 form entitled "Order Granting Attorney's Motion to Be Relieved as Counsel-Civil" must be resubmitted with the Court within the next 5 days of this ruling providing all the accurate dates and future dates.

The Court's Ruling and Attorney's relief as Counsel of record for client is not effective until Proof of Service of the Order signed by the Court upon the client is served and filed in this action. Until then, counsel continues to be counsel of record. (Cal. Rules of Court 3.1362(e).)

Defense

Counsel is ordered to give notice.